

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                           |                           |                                                       |                                               |                                            |
|--------------------------------------------------|-----------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Sara Griffin                    | Team:<br>Squad #05                                        | CCRB Case #:<br>201710651 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                           |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 11/16/2017 7:00 PM | Location of Incident:<br>East 92 Street and Farragut Road | 18 Mo. SOL<br>5/16/2019   | Precinct:<br>69                                       |                                               |                                            |
| Date/Time CV Reported<br>Thu, 12/28/2017 4:08 PM | CV Reported At:<br>CCRB                                   | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 12/28/2017 4:08 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. POF Ioana Matiuta       | 11291  | 956897 | 069 PCT |
| 2. LT Joseph Shirvis       | 00000  | 924489 | 069 PCT |
| 3. POM Brandon Agosto      | 20663  | 958220 | 069 PCT |
| 4. POF Stephanie Toussaint | 11464  | 958129 | 069 PCT |

| Officer(s)                  | Allegation                                                                                          | Investigator Recommendation |
|-----------------------------|-----------------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Ioana Matiuta       | Abuse: Police Officer Ioana Matiuta searched the vehicle in which § 87(2)(b) was an occupant.       | A . Substantiated           |
| B . POM Brandon Agosto      | Abuse: Police Officer Brandon Agosto searched the vehicle in which § 87(2)(b) was an occupant.      | B . Unsubstantiated         |
| C . POF Stephanie Toussaint | Abuse: Police Officer Stephanie Toussaint searched the vehicle in which § 87(2)(b) was an occupant. | C . Unsubstantiated         |
| D . LT Joseph Shirvis       | Discourtesy: Lieutenant Joseph Shirvis spoke discourteously to § 87(2)(b)                           | D . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)        |                                                                                                     |                             |
|                             |                                                                                                     |                             |

## Case Summary

On December 28, 2017, § 87(2)(b) filed the following complaint with the CCRB via telephone. On November 16, 2017, at approximately 7: 00 PM, § 87(2)(b) was driving alone on Farragut Road in Brooklyn when she was stopped by Police Officer Ioana Matiuta and Lieutenant Joseph Shirvis of the 69<sup>th</sup> Precinct. Police Officer Stephanie Toussaint and Police Officer Brandon Agosto of the 69<sup>th</sup> Precinct also arrived on scene. PO Matiuta allegedly searched § 87(2)(b)'s vehicle (**Allegation A: Abuse of Authority, Substantiated**) with the assistance of PO Toussaint (**Allegation B: Abuse of Authority, Unsubstantiated**) and PO Agosto (**Allegation C: Abuse of Authority, Unsubstantiated**). Lt. Shirvis allegedly called § 87(2)(b) an idiot (**Allegation D: Discourteous Language, Unsubstantiated**). § 87(4-b), § 87(2)(g)

§ 87(2)(b) was ultimately issued two summonses at the scene—§ 87(2)(b) and one for § 87(2)(b)—and permitted to leave.

There is no video footage of the incident.

## Findings and Recommendations

**Allegation A- Abuse of Authority: Police Officer Ioana Matiuta searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation B- Abuse of Authority: Police Officer Brandon Agosto searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation C- Abuse of Authority: Police Officer Stephanie Toussaint searched the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

It is undisputed that § 87(2)(b) was stopped initially after PO Matiuta believed § 87(2)(b) was utilizing her cell phone while operating a motor vehicle. It is undisputed that § 87(2)(b) was not compliant in providing her documentation to the officers when requested and at one point rolled up her driver's window. After being ordered out of her vehicle, § 87(2)(b) was placed in handcuffs and was seated inside a police vehicle. It is undisputed that PO Matiuta searched inside § 87(2)(b)'s vehicle for § 87(2)(b)'s documentation. § 87(2)(g)

§ 87(2)(b)'s testimony (Board Review 1) is as follows. Once seated inside the police vehicle, Lt. Shirvis spoke to § 87(2)(b). During this conversation, § 87(2)(b) saw PO Matiuta, PO Toussaint, and PO Agosto search her vehicle. PO Toussaint searched inside § 87(2)(b)'s vehicle from the passenger side and also searched through § 87(2)(b)'s pocketbook, which was rested on the floor of her vehicle. PO Agosto searched inside from the driver's side and inside her glove compartment.

PO Matiuta's testimony (Board Review 2) is as follows. After § 87(2)(b) was handcuffed, PO Matiuta opened the front passenger door and looked inside the vehicle for § 87(2)(b)'s

documentation. PO Matiuta did not recall if she asked § 87(2)(b) where the documents were prior to searching the vehicle. PO Matiuta recalled searching the center consul, glove box, and inside of § 87(2)(b)'s purse, which was rested on the passenger's seat. PO Matiuta denied she was instructed to search the vehicle, and took it upon herself to search for documentation. PO Matiuta did not believe any other officer searched the vehicle.

PO Agosto's testimony (Board Review 3) is as follows. PO Agosto did not recall seeing an officer search § 87(2)(b)'s vehicle and was unaware of how PO Matiuta obtained § 87(2)(b)'s documentation. PO Agosto denied that he or PO Toussaint searched the vehicle.

PO Toussaint's testimony (Board Review 4) is as follows. PO Toussaint did not recall if § 87(2)(b) indicated where her documentation was inside of her vehicle. PO Matiuta removed from the vehicle a wristlet that was on the driver's seat. PO Matiuta retrieved the necessary documentation from the wristlet. The contents of the wristlet could not be seen without opening it. PO Toussaint did not recall seeing PO Matiuta search anywhere else inside the vehicle. PO Toussaint denied that she or PO Agosto searched the vehicle.

Lt. Shirvis's testimony (Board Review 5) is as follows. Lt. Shirvis believed PO Matiuta informed him that § 87(2)(b)'s documentation had been found on her persons. Lt. Shirvis did not see PO Matiuta remove the documentation from § 87(2)(b)'s person. Lt. Shirvis denied seeing PO Matiuta, PO Toussaint, and PO Agosto search § 87(2)(b)'s vehicle.

Officers may not search a vehicle incident to arrest without a warrant unless an arrestee may access a weapon or destructible evidence, or when an officer reasonably believes evidence of the offense of arrest might be found in the vehicle. Arizona v. Gant, 556 U.S. 332 (2009) (Board Review 6). A Vehicle and Traffic Law violator is to be removed to the command for investigation if doubt concerning identity exists. Patrol Guide, Procedure 209-09 (Board Review 7).

§ 87(2)(g)  
[REDACTED]

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED] Therefore, it is recommended that **Allegation A** be closed as **Substantiated**.

§ 87(2)(g)  
[REDACTED]  
[REDACTED]

§ 87(2)(g) Therefore, it is recommended that **Allegations B** and **Allegation C** be closed as **Unsubstantiated**.

**Allegation D- Discourteous Language: Lieutenant Joseph Shirvis spoke discourteously to**

§ 87(2)(b)

It is undisputed that after being handcuffed, § 87(2)(b) was placed in the backseat of a police vehicle. While seated in the vehicle, Lt. Shirvis engaged in conversation with § 87(2)(b). It remains in dispute if Lt. Shirvis called § 87(2)(b) an idiot during this conversation.

§ 87(2)(b) (Board Review 1) alleged while seated in the rear of the police vehicle, Lt. called her an idiot.

Lt. Shirvis (Board Review 5) denied calling § 87(2)(b) an idiot and did not hear § 87(2)(b) complain of any officer calling her an idiot.

PO Matiuta, PO Agosto, and PO Toussaint (Board Review 2, 3, 4) each denied hearing Lt. Shirvis call § 87(2)(b) an idiot and did not hear § 87(2)(b) complain of being called an idiot.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

### **Civilian and Officer CCRB Histories**

- This is § 87(2)(b) s fourth CCRB complaint. § 87(2)(g)
- PO Matiuta has been a member of the NYPD for three years and is the subject officer of one prior complaint involving one allegation. The complaint was mediated (Board Review 12).
- Lt. Shirvis has been a member of the NYPD for 18 years. This is his first CCRB complaint (Board Review 13).
- PO Toussaint has been a member of the NYPD for three years. This is PO Toussaint's first CCRB complaint. PO Toussaint has another open CCRB complaint, #201800013, which is currently under investigation. § 87(2)(g)
- PO Agosto has been a member of the NYPD for two years. This is his first CCRB complaint (Board Review 15).

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) rejected mediation, as she did not want to see the officers again.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of February 14, 2018, an inquiry into the Office of the New York City Comptroller revealed no notice of claim filed by § 87(2)(b)

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Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Squad Leader: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Reviewer: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|